

		October 24, 2025, at 6:59 p.m. by a registered California process server. (ROA 14.) In California, there is a presumption of valid service if done by a registered process server under California Evidence Code section 647. "Evidence Code section 647 provides that a registered process server's declaration of service establishes a presumption affecting the burden of producing evidence of the facts stated in the declaration. (<i>See also Floveyor Internat., Ltd. v. Superior Court</i> (1997) 59 Cal.App.4th 789, 795, 69 Cal.Rptr.2d 457 [filing of proof of service that complies with the applicable statutory requirements creates a rebuttable presumption of proper service].)" (<i>American Express Centurion Bank v. Zara</i> (2011) 199 Cal.App.4th 383, 390.) To rebut the presumption of proper service arising from a registered process server's declaration, the party seeking relief is required to present evidence that he was not so served. (<i>Ibid.</i>; <i>Rodriguez v. Cho</i> (2015) 236 Cal.App.4th 742, 750.) Although the registered process server's declaration of service establishes a presumption of valid service, Defendant rebuts the presumption of proper service by submitting a declaration which provides that she has lived alone at her residence for 36 years; that from October 18, 2025, through November 1, 2025, she was out of the country on vacation, and no one was at home when she was allegedly personally served; that she has never met or in any way interacted with Plaintiff's process server; and that other than the alleged attempted service on October 24, 2025, she is unaware of any other attempts to serve her, and she has not been personally served. (ROA 17, Declaration of Judith Alvord, ¶¶ 2-5, Ex. A.) Based on the foregoing, the Court GRANTS Defendant's motion to quash service of summons and Complaint. The Case Management Conference is continued to August 27, 2026 at 1:30 p.m. <i>Defendant to give notice.</i>
106	Hunter vs. Stor It Self Storage-Costa Mesa, Inc., 22-01279230	<u>MOTION TO DISMISS</u> Defendants Stor It Self Storage-Costa Mesa, Inc. and S.I. Management, LLC (together, "Stor-It Defendants") move for an Order dismissing the Third Amended Complaint and this action in its entirety with prejudice for Plaintiff's delay in prosecution; alternatively, monetary sanctions of \$1,400 for the fees incurred in preparing this Motion in addition to the unpaid monetary sanctions of \$1,485, and any further relief this Court deems just and proper.

		Plaintiff filed this action nearly four years ago, on September 8, 2022. Since then, Plaintiff has repeatedly missed deadlines imposed by the Court and failed to appear, as detailed in the declaration of Joel Brodfuehrer filed in support of the motion. (Brodfuehrer Decl. ¶¶ 3-12.) In particular, Plaintiff has failed to remit payment of the Court-ordered sanctions and has also failed to produce the discovery documents previously ordered by this Court. Stor-It Defendants bring this motion pursuant to Code of Civil Procedure §§ 583.410-583.430. Pursuant to section 583.410, “[t]he Court may in its discretion dismiss an action for delay in prosecution pursuant to this article on its own motion or on motion of the defendant if to do so appears to the court appropriate under the circumstances of the case.” (CCP § 583.410.) The failure to bring an action to trial within two years of filing is grounds for discretionary dismissal. (CRC 3.1340(a).) The papers supporting a motion to dismiss under § 583.410 must be filed and served at least 45 days prior to the hearing. (CRC 3.1342(a).) Stor-It Defendants served the moving papers on April 6, 2026, more than 45 days before the scheduled hearing. Plaintiff has not filed a timely opposition to the motion. “The failure of the opposing party to serve and file a written opposition may be construed by the court as an admission that the motion [to dismiss] is meritorious, and the court may grant the motion without a hearing on the merits.” (CRC 3.1342(b).) Instead, three days before the hearing, Plaintiff filed a handwritten opposition indicating, that “I am not able to competently prosecute the instant action and provide competent deposition testimony and request this court about 30 days for me to retain counsel to represent me.” Plaintiff also complains of effects from being struck by a vehicle in 2022 and from falling down a flight of stairs in 2023. She also claims to have initiated a bankruptcy proceeding. The complaint in this case was filed by Plaintiff in pro per on September 8, 2022 (ROA 1.) Since as early as September 28, 2023, Plaintiff has claimed to be attempting to retain counsel. (9/28/2023 Minute Order; ROA 85 (“Plaintiff stated that she has been speaking with a law firm who may be retained and may turn this case into a class action lawsuit.”); see also 11/16/2023 Minute Order; ROA 106 (“Plaintiff stated . . . she is speaking with a couple of attorneys to take the case over.”);
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In addition, the Court advised Plaintiff that if the case was not brought to trial within three years, the case could be dismissed. (1/16/2025 Minute Order; ROA 213 ("The Court advised Plaintiff of the five-year deadline on the case and if no trial is set, the case may be dismissed on motion of the defense. Plaintiff further advised that things could happen after three years if certain things didn't happen.").)

While the Court is sympathetic to the various medical issues suffered by Plaintiff and her spouse, these issues are not new. Nor are they a basis for the continued willful violation of this Court's prior orders. The Court will grant afford one final grace toward Plaintiff. The motion to dismiss is DENIED. The alternative request for additional monetary sanctions is GRANTED in the amount of \$1,400. The new sanction award of \$1,400 and the prior unpaid sanction award of \$1,485 are ordered to be paid within 30 days. In addition, Plaintiff is ordered to make herself available for deposition within 30 days. If Plaintiff fails to pay the additional sanctions awards, and Plaintiff fails to appear for her deposition, moving parties are granted leave to re-file their motion to dismiss and to seek an ex parte advancing the hearing the date.

Stor-It Defendants to give notice.

MOTION FOR RECONSIDERATION

Plaintiff Ruby Hunter's Moves for Reconsideration of the Court's 1-15-2026 Order. The hearing on the Motions to Compel were originally set for 1/8/26, per a Minute Order granting Defendants' ex parte application to advance the hearing dates. (ROA 260). Subsequently, on 12/29/26, the Court issued a Minute Order continuing the hearings on its own motion to 1/15/26. (ROA 270.) The Minute Order did not state that the briefing deadlines were tied to the original 1/8/26 hearing date. Plaintiff filed timely oppositions on 12/31/26, which was the deadline based on the new 1/15/26 hearing date.

In viewing the oppositions, it appears that Plaintiff attached discovery responses, including substantially compliant responses to Requests for Admission.

Defendants filed a reply to the oppositions, stating that the oppositions were untimely because they were not served in time for the original 1/8/26 hearing date, and that the oppositions had not been served on Defendants. Defendants also stated that they were not served with the discovery responses. However, the oppositions and the discovery responses have proofs of service indicating email service on Defendants' counsel.

		Plaintiff request to reconsider the order deeming matters admitted is GRANTED. Where a motion to deem responses admitted is pending, the court "shall" grant the motion "unless it finds that the party to whom the requests for admission have been directed has served, before the hearing on the motion, a proposed response ... in substantial compliance with Section 2033.220." [CCP § 2033.280(c); <i>St. Mary v. Sup.Ct. (Schellenberg)</i> (2014) 223 Cal.App.4th 762, 778 (citing Weil & Brown, <i>Cal Prac. Guide: Civ. Pro Before Trial</i> (The Rutter Group))] Attached to Plaintiff's opposition to the motion to deem matters admitted (ROA 273) are verified responses without objections. Plaintiff responds to each request with "Deny." These are code compliant responses. As a result, having considered the motion again, the Court now finds that the opposition was timely filed and DENIES the motion to find the requests for admission to be deemed admitted. However, the sanction award remains the same. <i>Stor-It Defendants to give notice.</i>
107	Shee vs. Han, 24-01402403	<u>DEMURRER</u> Defendant Lisa Han ("Han") demurs to Plaintiff's first, second and fourth causes of action in the Second Amended Complaint. The SAC alleges that Plaintiff and Han purchased property together in May 2013, had a falling out in December 2013, and that Han shortly thereafter misled Plaintiff into signing away her ownership interest in the property by executing a grant deed. (SAC ¶¶ 11-14.) Plaintiff alleges that in October 2020, Han put the property up for sale and requested that Plaintiff sign an affidavit of insured deed, as she was still on the mortgage. (SAC ¶ 17.) Plaintiff refused. (SAC ¶ 17.) Plaintiff alleges she learned on September 15, 2022 that escrow had closed anyway. (SAC ¶ 17.) Han refused to pay any of the funds from the sale to Plaintiff. (SAC ¶ 18.) Han contends that all three causes of action pled against her in the SAC are barred by the applicable statutes of limitations, and that Plaintiff has not sufficiently alleged facts to support the application of the discovery rule. The relevant causes of action are (1) the first cause of action for constructive trust; (2) the second cause of action for money had and receive; and (3) the fourth cause of action for fraud – concealment.